

SERVICE AGREEMENT

Sample document created for testing clause extraction, risk detection, renewal alerts, semantic search, and RAG chat.

Effective Date	January 1, 2027
Customer	Apex Retail Solutions Private Limited
Service Provider	Nimbus Technology Services LLP
Initial Term	12 months
Governing Law	State of Telangana, India

This Service Agreement (the "Agreement") is entered into on January 1, 2027, by and between **Apex Retail Solutions Private Limited**, having its principal office in Hyderabad, Telangana (the "Customer"), and **Nimbus Technology Services LLP**, having its principal office in Bengaluru, Karnataka (the "Service Provider"). The Customer and the Service Provider may each be referred to as a "Party" and together as the "Parties".

1. Services

The Service Provider shall provide cloud application support, incident management, system monitoring, monthly performance reporting, and technical assistance described in Schedule A.

The Service Provider must maintain suitably qualified personnel and will be responsible for coordinating all support activities with the Customer's designated project manager.

The Customer shall provide timely access to systems, documentation, credentials, and personnel reasonably required for the Service Provider to perform the Services.

2. Service Levels

Critical incidents must be acknowledged within one hour and the Service Provider shall use commercially reasonable efforts to restore service within four hours.

The Service Provider is required to submit a monthly service-level report within five business days after the end of each calendar month.

Scheduled maintenance shall be communicated at least 72 hours in advance, except for emergency maintenance.

3. Fees and Payment

The Customer shall pay a monthly service fee of INR 250,000 plus applicable taxes. The Service Provider will issue invoices on the first business day of each month.

The Customer must pay each undisputed invoice within 30 days of the invoice date. Late amounts may accrue interest at 1.5 percent per month.

All setup fees are non-refundable, even if the Customer terminates the Agreement before completion of onboarding.

The Service Provider may revise fees at its sole discretion after the initial term by giving the Customer 15 days written notice.

4. Confidentiality

Each Party shall protect the other Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

Confidential Information may be used only to perform or receive the Services and must not be disclosed to any third party except approved personnel who are bound by confidentiality obligations.

These confidentiality obligations shall survive termination of this Agreement for five years. Trade secrets shall remain protected on a perpetual basis.

5. Data Protection and Security

The Service Provider shall process personal data only on documented instructions from the Customer and must implement reasonable technical and organizational security measures.

The Service Provider must notify the Customer of any confirmed personal data breach without undue delay and, in any event, within 24 hours after discovery.

The Parties agree to comply with applicable privacy and data protection laws.

6. Intellectual Property

Each Party retains ownership of intellectual property owned before the Effective Date. The Customer owns all Customer Data.

The Service Provider retains ownership of its tools, templates, software, methods, and know-how. The Customer receives a non-exclusive license to use deliverables solely for internal business purposes during the term.

Any feedback supplied by the Customer may be used by the Service Provider without restriction and on a perpetual, royalty-free basis.

7. Warranties

The Service Provider warrants that the Services will be performed in a professional and workmanlike manner.

Except as expressly stated in this Agreement, the Services are provided "as is" and all implied warranties are excluded to the maximum extent permitted by law.

8. Liability

The Service Provider shall have unlimited liability for fraud, wilful misconduct, breach of confidentiality, and infringement of third-party intellectual property rights.

For all other claims, the aggregate liability of either Party shall not exceed the fees paid or payable during the six months preceding the event giving rise to the claim.

Neither Party shall be liable for indirect, incidental, special, punitive, or consequential damages, including loss of profits or loss of business opportunity.

9. Indemnification

The Service Provider shall indemnify and hold harmless the Customer, its affiliates, officers, and employees from claims arising from the Service Provider's negligence, breach of confidentiality, or infringement of third-party intellectual property rights.

The Customer shall promptly notify the Service Provider of an indemnified claim and allow the Service Provider to control the defence, provided that no settlement may impose liability on the Customer without its written consent.

10. Term and Automatic Renewal

This Agreement begins on January 1, 2027 and remains in effect for an initial term of 12 months, expiring on December 31, 2027.

After the initial term, this Agreement will automatically renew for additional one-year terms unless either Party provides at least 60 days written notice before the applicable expiration date.

The renewal fee may be increased by up to 8 percent for each renewal term.

11. Termination

Either Party may terminate this Agreement for material breach if the breaching Party fails to cure the breach within 30 days after receiving written notice.

The Service Provider may immediately terminate this Agreement and suspend access without notice if any invoice remains unpaid for more than 45 days.

The Customer may terminate for convenience by providing 90 days written notice, but all prepaid and setup fees remain non-refundable.

Upon termination, the Customer shall pay all outstanding fees within 10 business days, and the Service Provider must return or delete Customer Data within 30 days, subject to legal retention obligations.

12. Obligations on Expiration or Termination

Each Party shall return or destroy the other Party's Confidential Information upon request.

The Service Provider agrees to provide reasonable transition assistance for up to 30 days at its then-current professional service rates.

The Customer is required to export all required data before the termination effective date.

13. Audit and Records

The Service Provider must maintain accurate records relating to service performance and security controls for at least three years.

The Customer may audit relevant records once per year upon 15 business days prior notice. The Customer may conduct an additional audit at any time following a material security incident.

14. Force Majeure

Neither Party shall be liable for delay caused by events beyond its reasonable control, including natural disasters, government action, war, civil disturbance, or widespread internet failure.

The affected Party must notify the other Party promptly and use reasonable efforts to minimize the impact.

15. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of Telangana, India, without regard to conflict-of-law principles.

The Parties shall first attempt to resolve disputes through good-faith negotiation. If unresolved within 30 days, disputes shall be subject to the exclusive jurisdiction of the courts located in Hyderabad, Telangana.

16. Notices

All notices under this Agreement must be in writing and delivered by hand, reputable courier, or email with delivery confirmation to the addresses stated below.

A notice is deemed received on delivery, or for email, on the next business day after transmission if no delivery failure message is received.

17. Assignment

Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, reorganization, or sale of substantially all assets.

The Service Provider may subcontract portions of the Services at any time, but remains responsible for subcontractor performance.

18. Entire Agreement

This Agreement, including its schedules, constitutes the entire agreement between the Parties and supersedes prior discussions, proposals, and communications relating to its subject matter.

Any amendment must be in writing and signed by authorized representatives of both Parties. A waiver is effective only if in writing.

SCHEDULE A - SERVICE DESCRIPTION

Service	Description	Target
Incident Management	Receive, classify, investigate, and resolve production incidents.	24x7 for critical incidents
Monitoring	Monitor application availability, integrations, and scheduled jobs.	Continuous monitoring
Reporting	Provide monthly performance, availability, and incident reports.	Within 5 business days
Support	Provide email and portal support for authorized Customer users.	Business hours except critical incidents

SIGNATURES

For Apex Retail Solutions Private Limited

Name: _____

Title: _____

Signature: _____

Date: _____

For Nimbus Technology Services LLP

Name: _____

Title: _____

Signature: _____

Date: _____

This is a fictional sample agreement for software testing and educational purposes. It is not legal advice and is not intended for use as an actual contract.